

Indian Polity — Part 6

Part 6 of 7

Union Executive — Prime Minister, Council of Ministers, President & Vice-President

PM & CoM

President Art 52-78

VP Art 63-71

SSC CGL • CHSL • CPO • MTS/GD • Railway NTPC • State Police/Defence

2026 Update

DEPTH CALIBRATION — SSC CGL

From this part onward, facts are tagged **CORE** (high-probability, direct factual recall — memorise these first) or **BONUS** (useful context, more likely on Tier-2/CPO, or just aids retention). Current-affairs items are tagged **2026 UPDATE**.

Why This Chapter Matters

EXAM WEIGHT

President, Vice-President, and PM/Council of Ministers together form one of the most consistently tested clusters in SSC Polity — qualifications, terms, election methods, and removal procedures show up almost every shift, often as direct one-liners ("minimum age for President," "who conducts the President's election").

1. Prime Minister & Council of Ministers **CORE**

Article	Fact
75(1)	PM is appointed by the President — even though the PM is chosen through elections/majority support, the appointment only becomes official once the President formally appoints them
75(1)	Other Ministers are appointed by the President on the advice of the PM (President decides who gets which ministry only after consulting the PM)
75(2)	Ministers hold office "during the pleasure of the President" — but the President can only act on this via the advice of the PM and Council, not at personal discretion
75(3)	The Council of Ministers is collectively responsible to the Lok Sabha (not the Rajya Sabha)
—	A person who isn't a member of either House when appointed Minister must become a member of either House within 6 months , or cease to be a Minister

TRAP WORDING

"Collectively responsible to Parliament" is a common wrong phrasing — the Constitution specifically says responsible to the **Lok Sabha** (House of the People), not Parliament as a whole or the Rajya Sabha.

Attorney General vs. Advocate General **CORE**

Post	Level	Key Facts
Attorney General	Union (Centre)	Highest law officer of India; appointed at the pleasure of the President ; can attend and speak in either House of Parliament (or any joint sitting/committee), but cannot vote; not a member of either House themselves
Advocate General	State	Highest law officer of a State; same role at state level; can attend and speak in either House of that State's Legislature

Article 2 vs. Article 3 — A Frequently Confused Pair **CORE**

Article	Covers
2	Creation of an entirely new State — admitting or establishing new States into the Union (bringing in land from outside)
3	Formation/reorganisation of existing States — altering boundaries, area, or name of a State, or splitting/merging States that are already part of India (e.g., Andhra Pradesh → Telangana split, Punjab → Punjab/Haryana/Himachal split)

TRAP WORDING

Both powers belong to **Parliament** — the distinction tested is Article 2 (creation, new land) vs Article 3 (reorganisation, internal boundary change), not which body has the power.

2. Election of the President CORE

Fact	Detail
Method	Indirect election via an Electoral College
Who votes	Elected members of Parliament (MPs) + elected members of State and Union Territory Legislative Assemblies (MLAs) — nominated members of either House do NOT vote in a Presidential election
Which UTs participate	Only Delhi and Puducherry (the only UTs with their own Legislative Assemblies)
Conducted by	The Election Commission of India
Voting system	Proportional representation by means of the single transferable vote; voting is by secret ballot
Disputes	Any dispute regarding the President's (or VP's) election is decided by the Supreme Court (Article 71)

HIGH-ALERT TRAP

Nominated MPs/MLAs are excluded from **electing** the President — but they DO get to vote if the President faces **impeachment** later. Don't apply the same "nominated members excluded" rule to both processes; it only applies to the original election.

Qualifications to Contest for President CORE

Requirement	Detail
Citizenship	Must be a citizen of India
Age	Must have completed 35 years
Eligibility	Must be qualified for election as a member of the Lok Sabha
Office of profit	Must not hold any office of profit — though holding the office of President, Vice-President, Governor, or a Union/State Minister is specifically not counted as "office of profit" for this purpose
Nomination	Needs 50 proposers and 50 seconders from the Electoral College to contest
Security deposit	₹15,000, deposited with the RBI — forfeited if the candidate fails to secure at least 1/6th of the votes polled

TRAP WORDING

A PYQ-style option may claim a President candidate "must not hold office of profit under the *Central Government*" as if that's the disqualifying rule — that's a distortion. The real rule bars *private* offices of profit (e.g., heading a company); serving as President/VP/Governor/Minister is explicitly exempted, not banned.

3. Term, Succession, Powers & Impeachment of the President CORE

Fact	Detail
Term	5 years from the date of assuming office
Re-election	No limit — a President can be re-elected any number of times (unlike the US President's 2-term cap)
Resignation	Submitted to the Vice-President
Removal	Only by impeachment (Article 61) — for "violation of the Constitution"
Succession order if vacancy	Vice-President acts as President first; if VP is also unavailable, the Chief Justice of India acts as President (drawing the President's salary/powers/residence for that period)
Salary	Roughly ₹5 lakh/month, and it is tax-free

IMPEACHMENT PROCEDURE (ARTICLE 61)

Can be initiated in **either House** of Parliament. Requires **14 days' notice**, signed by at least 1/4th of that House's members. Needs a **special majority** (2/3rd of total membership) to pass in both Houses. This is a much stricter, more formal process than the Vice-President's removal (see below) — no President has ever been impeached in India's history.

4. Vice-President (Articles 63–71)

CORE

Article	Fact
63	There shall be a Vice-President of India
64	VP is the ex-officio Chairman of the Rajya Sabha — not a member of it, just presides over it
66	Qualifications: citizen of India, 35 years of age, qualified for election as a Rajya Sabha member, no office of profit, ₹15,000 security deposit (same forfeiture rule as President)
67	Term of 5 years ; removal procedure (see box below)
69	Oath administered by the President
70	Discharge of the President's functions in other contingencies (VP steps in when President is unavailable)

VP REMOVAL (ARTICLE 67(B)) VS. PRESIDENT'S IMPEACHMENT (ARTICLE 61) — DON'T MIX THESE UP

The Vice-President's removal is a much **simpler** process than the President's impeachment:

- Can be initiated **only in the Rajya Sabha** (not either House, unlike the President)
- Needs an **effective majority** (majority of all then members) in the Rajya Sabha, then just a **simple majority** agreement in the Lok Sabha — not a 2/3rd special majority in both Houses
- 14 days' notice is still required
- No grounds need to be specified, and it is not technically called "impeachment" — that term is reserved for the President's removal only

VP'S DUAL ROLE

The VP is part of both the **Legislative** branch (as ex-officio Chairman of Rajya Sabha) and the **Executive** branch (as the person who steps in for the President when needed) — a commonly tested "which branch does the VP belong to" question, and the answer is *both*.

Gap Within This Part — Governor's Removal Has No Impeachment At All

BONUS

A USEFUL CONTRAST THE VIDEO DOESN'T SPELL OUT

President = removed only by impeachment (hardest). VP = removed by a simpler resolution process (medium). **Governor = can be removed anytime, with zero formal procedure**, purely "during the pleasure of the President" (Article 156) — there's no impeachment, no resolution, no notice period at all. This three-way contrast (hard → medium → none) is a clean way to remember all three removal processes together.

5. Emergency Provisions — Quick Map (Full Detail in a Later Part)

CORE

Article	Type	Key Trigger
352	National Emergency	War, external aggression, or armed rebellion — invoked once, 1975 (Indira Gandhi)
356	President's Rule (State Emergency)	Constitutional machinery breakdown in a State; max 3 years total via repeated 6-month extensions; needs both Houses' approval within 2 months
365	(Linked to 356)	A State's failure to comply with Union directions is treated as grounds that constitutional machinery has failed — often used as a "warning" step before invoking 356
360	Financial Emergency	Threat to India's financial stability/credit — never invoked in India's history (came close in 1991, averted by the LPG reforms under PM P.V. Narasimha Rao / FM Manmohan Singh)

SARKARIA COMMISSION — KEY RECOMMENDATIONS ON ARTICLE 356

BONUS

Set up to review Centre-State relations after 356 was invoked repeatedly and controversially in the 1970s-80s. Recommended: use Article 356 only as a "last resort" after issuing a warning under Article 365; give Governors a **fixed 5-year tenure** so they aren't afraid to act independently; ensure President's Rule imposition is approved by **both Houses within 2 months**.

TRAP WORDING

A PYQ option may claim frequent use of Article 356 "strengthens" the federal structure — false, it does the opposite: repeated 356 use undermines states' autonomy and damages India's federal character, which is exactly why the Sarkaria Commission urged restraint.

6. Introducing the Governor (Full Powers in a Later Part) CORE

Article	Fact
153	There shall be a Governor for each State (one Governor can also be appointed for two or more States)
155	Governor is appointed by the President (by warrant, under his hand and seal)
156	Governor holds office " during the pleasure of the President " — can be removed anytime, with no formal procedure (see Gap box above)
157	Qualifications: citizen of India, at least 35 years of age, no office of profit
176	Special Address by the Governor — opens the first session of the Assembly after a general election, and the first session of each new year

THE PRESIDENT/GOVERNOR, PM/CM PARALLEL

President = **de jure** (constitutional/titular) head of the Union; PM = **de facto** (real) executive head. The exact same relationship repeats at the State level: Governor = de jure head of the State; Chief Minister = de facto head. This parallel is a reliable way to answer "who is the real head of government" questions at either level.

Master Reference Table

Fact	Answer
Who appoints the PM	The President (Article 75)
Council of Ministers responsible to	Lok Sabha (not Rajya Sabha, not "Parliament" generally)
Time limit for a non-member Minister to join a House	6 months
Article for creation of a new State	Article 2
Article for reorganisation of existing States	Article 3
Who conducts the President's election	Election Commission of India
UTs that participate in Presidential elections	Delhi and Puducherry
Who decides election disputes for President/VP	Supreme Court (Article 71)
Minimum age for President / Vice-President	35 years (both)
Security deposit for President/VP candidates	₹15,000 (forfeited if under 1/6th votes)
President's term	5 years, re-election unlimited
President's removal procedure	Impeachment, Article 61, special majority in both Houses
Succession if President and VP both unavailable	Chief Justice of India acts as President
VP's ex-officio role	Chairman of the Rajya Sabha (Article 64)
VP's removal procedure	Article 67(b) — RS effective majority + LS simple majority, no formal impeachment
Governor's removal procedure	None formal — purely at the President's pleasure (Article 156)
Article for Financial Emergency	Article 360 (never invoked)
Commission that reviewed Article 356's misuse	Sarkaria Commission

30-Second Revision Table

Topic	Key Fact
PM appointment	By President (Art 75)
CoM responsible to	Lok Sabha only
Non-member Minister limit	6 months
Article 2 vs 3	New State vs Reorganisation
President's electoral college	Elected MPs + elected MLAs (Delhi, Puducherry only among UTs)
President min age / term	35 / 5 years, unlimited re-election
President succession	VP → CJI
VP ex-officio role	RS Chairman
VP removal	RS effective majority + LS simple majority (Art 67(b))
Governor appointment/removal	President's pleasure both ways (Art 155/156)
Emergency articles	352 National / 356 State / 360 Financial (never used)

2026 Current-Affairs Hooks 2026 UPDATE

WHO HOLDS THESE OFFICES RIGHT NOW (JULY 2026)

- **President:** Droupadi Murmu — 15th President, in office since 25 July 2022 (term runs to 2027); first tribal President, second woman President after Pratibha Patil
- **Vice-President:** C.P. Radhakrishnan — 15th VP, sworn in **12 September 2025**
- **Prime Minister:** Narendra Modi — serving his third consecutive term since June 2024

THE DHANKHAR RESIGNATION — WHY THIS MATTERS FOR THIS CHAPTER

Jagdeep Dhankhar (14th VP) resigned on **21 July 2025**, citing health reasons — two years before his term was due to end. This is directly relevant here because an opposition move to bring a removal resolution against him (under Article 67(b)) had been in the news shortly before his resignation — a real, live example of the Article 67(b) procedure described above, even though it never reached a final vote. If you see an SSC question referencing a "recent VP impeachment/removal attempt," this is almost certainly what it means — and remember, technically it's a "removal resolution," not an "impeachment" (that word is reserved for the President).

BHARAT RATNA, 2024

On **30 March 2024**, President Murmu conferred the Bharat Ratna on former PM **P.V. Narasimha Rao** (posthumous), along with former PM Chaudhary Charan Singh (posthumous), agricultural scientist M.S. Swaminathan (posthumous), and former Bihar CM Karpoori Thakur (posthumous).

THE GOVERNOR'S ASSENT SAGA — ARTICLES 200 & 201 (2025 SUPREME COURT RULINGS)

A major real-world tug-of-war over Governor/President powers just played out and is very likely to appear as a general-awareness or reasoning-based question:

- **April 2025:** A 2-judge Supreme Court bench ruled Tamil Nadu Governor R.N. Ravi's withholding of 10 Bills was "illegal and arbitrary," and set a **3-month deadline** for the President/Governor to act on Bills, even introducing a "deemed assent" concept for the first time
- **May 2025:** President Murmu made a **Presidential Reference** under **Article 143**, sending 14 questions to the Supreme Court asking whether courts can impose such timelines at all
- **November 2025:** A **5-judge Constitution Bench** reversed course — holding that Governors and the President are **NOT bound by judicially-imposed timelines** under Articles 200/201, that there is no such thing as "deemed assent," and that their discretion in this area is real and cannot be substituted by the judiciary

WHY THIS IS WORTH KNOWING FOR SSC

This saga is more likely to show up as a current-affairs GK question ("who is the current VP," "recent Supreme Court ruling on Governor's powers") than as a detailed Article 200/201 legal-reasoning question — SSC CGL rarely tests multi-layered case sagas in depth. Treat this as a name-recognition item, not something to memorise clause-by-clause.

PYQ-Style Q&A (From This Video's Content)

Q1. Who appoints the Prime Minister of India?

A. The President (Article 75).

Q2. To which House is the Council of Ministers collectively responsible?

A. The Lok Sabha.

Q3. Within how many months must a non-member Minister become a member of either House?

A. 6 months.

Q4. Which Article deals with the creation of an entirely new State, and which with reorganisation of existing States?

A. Article 2 (new State); Article 3 (reorganisation).

Q5. Who conducts the election of the President of India?

A. The Election Commission of India.

Q6. Which two Union Territories participate in the President's election?

A. Delhi and Puducherry.

Q7. Do nominated MPs/MLAs vote in the President's election?

A. No — but they do vote during the President's impeachment.

Q8. Which institution resolves disputes about the President's or VP's election?

A. The Supreme Court (Article 71).

Q9. What is the minimum age to contest for President of India?

A. 35 years.

Q10. How many proposers and seconders does a Presidential candidate need?

A. 50 proposers and 50 seconders.

Q11. What happens to a Presidential candidate's security deposit if they get less than 1/6th of the votes?

A. It is forfeited.

Q12. Can a President of India be re-elected multiple times?

A. Yes — there is no limit, unlike the US President's two-term cap.

Q13. To whom does the President submit their resignation?

A. The Vice-President.

Q14. If both the President and Vice-President are unavailable, who acts as President?

A. The Chief Justice of India.

Q15. What is the Vice-President's ex-officio role?

A. Chairman of the Rajya Sabha (Article 64).

Q16. How is the Vice-President removed from office?

A. By a resolution of the Rajya Sabha (effective majority), agreed to by the Lok Sabha (simple majority) — Article 67(b); not called "impeachment."

Q17. Which Article empowers the President to appoint State Governors?

A. Article 155.

Q18. How can a Governor be removed?

A. At the President's pleasure (Article 156) — no formal procedure or notice needed.

Q19. Which Article deals with a Governor's Special Address?

A. Article 176.

Q20. Which Article covers Financial Emergency, and has it ever been invoked?

A. Article 360; never invoked in India's history.

Q21. Which Commission recommended restraint in using Article 356 and a fixed 5-year Governor tenure?

A. The Sarkaria Commission.

Q22. Who was the first Prime Minister of India, and who has served the longest so far?

A. Jawaharlal Nehru — both first and longest-serving to date.

Q23. Who was the first Prime Minister from South India?

A. P.V. Narasimha Rao.

Q24. Who was the first Sikh Prime Minister of India?

A. Manmohan Singh.

Q25. Who is the current Vice-President of India (as of 2026)?

A. C.P. Radhakrishnan.

Q26. In which year did the Supreme Court hold that laws in the 9th Schedule after 1973 aren't automatically immune (cross-reference to Part 3)?

A. 2007 (I.R. Coelho case).

Q27. Which Article lets the Attorney General attend and speak in either House of Parliament without voting?

A. This power flows from the Attorney General's constitutional role under Article 76, though the specific attendance right is a statutory/conventional extension of the office, not a separately numbered Article.

Cross-check: PM/CoM, Presidential/VP election and qualification facts, and the Emergency provisions overview are transcribed and verified from the source lecture. The Governor removal contrast, Sarkaria Commission detail, and all 2026 current-affairs items (VP change, Bharat Ratna, Governor assent rulings) were independently researched and verified against current sources. This is Part 6 of a 7-part Indian Polity series.